

No. 25A _____

IN THE
Supreme Court of the United States

ANDREW HESS,

Applicant,

v.

OAKLAND COUNTY, MI; KAREN McDONALD, IN HER OFFICIAL CAPACITY AS
OAKLAND COUNTY PROSECUTOR, OAKLAND COUNTY, MI; MICHAEL J.
BOUCHARD, IN HIS OFFICIAL CAPACITY AS OAKLAND COUNTY SHERIFF,
OAKLAND COUNTY, MI; MATTHEW PESCHKE, IN HIS OFFICIAL CAPACITY AS
SEARGEANT, OAKLAND COUNTY SHERIFF'S OFFICE, OAKLAND COUNTY, MI,

Respondents.

To the Honorable Brett Kavanaugh, Associate Justice of the Supreme Court
of the United States and Circuit Justice for the Sixth Circuit

**Application from the United States Court of Appeals
for the Sixth Circuit (No. 25-1784)**

EMERGENCY APPLICATION FOR WRIT OF INJUNCTION

ROBERT J. MUISE, ESQ.

Counsel of Record

AMERICAN FREEDOM LAW CENTER

P.O. Box 131098

Ann Arbor, Michigan 48113

(734) 635-3756

rmuise@americanfreedomlawcenter.org

Counsel for Applicant

QUESTION PRESENTED

At a contentious election recount held in Oakland County, Michigan (“County”) on December 15, 2023, Applicant made an offhand comment (“*Hang Joe for Treason*,” which is political hyperbole as a matter of law), in conversational tone, in a near-empty lobby, outside of the presence of any election official (including Joe Rozell—the Director of Elections for the County and the “Joe” referenced in the comment), that was overheard by a secretary (Ms. Kaitlyn Howard), who was admittedly not a participant in the conversation and who waited before making a report of this statement to the deputy sheriffs at the scene because there was no threat of any imminent harm and she simply didn’t “take kindly” to the use of such language.

After Applicant was questioned by a deputy sheriff about the alleged threat (Applicant denied threatening to harm Joe Rozell—he told the deputy he was accusing him of a crime), Applicant was permitted to return to the recount room where Joe Rozell was located, at which time Applicant gave a speech during the public comment period about how he believes that cheating on elections is treason. The County waited nearly four months before bringing the original criminal charge against Applicant for allegedly making a “terrorist threat” in violation of Michigan Compiled Laws § 750.543m. The charge was previously dismissed. And now the County is seeking to reinstate this 20-year felony charge against Applicant for his political comment. The question presented is as follows:

Whether Michigan Compiled Laws § 750.543m, facially and as applied to Applicant’s speech, violates the First Amendment.

CORPORATE DISCLOSURE STATEMENT

Applicant Andrew Hess is a private person. There are no publicly traded companies with a financial interest in this case.

PARTIES TO THE PROCEEDING

Applicant, who is Plaintiff-Appellant in the Sixth Circuit, is Andrew Hess.

Respondents, who are Defendants-Appellees in the Sixth Circuit, are Oakland County, Michigan; Karen McDonald, in her official capacity as Oakland County Prosecutor, Oakland County, Michigan; Michael J. Bouchard, in his official capacity as Oakland County Sheriff, Oakland County, Michigan; and Matthew Peschke, in his official capacity as Sergeant, Oakland County Sheriff's Office, Oakland County, Michigan.

RELATED PROCEEDINGS

Andrew Hess v. Oakland County, MI, et al., No. 2:25-cv-10665-GAD-KGA, U.S. District Court for the Eastern District of Michigan. Order denying preliminary injunction entered on August 29, 2025, and order denying injunction pending appeal entered September 3, 2025.

Andrew Hess v. Oakland County, MI, et al., No. 25-1784, U.S. Court of Appeals for the Sixth Circuit. Order denying injunction pending appeal entered October 1, 2025.

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To the Honorable Brett Kavanaugh, Associate Justice of the United States Supreme Court and Circuit Justice for the Sixth Circuit:

Pursuant to Rule 22 of this Court and the All Writs Act, 28 U.S.C. § 1651(a), Applicant Andrew Hess respectfully seeks an emergency injunction prohibiting enforcement of Michigan Compiled Laws § 750.543m against him pending the appeal, and the filing and disposition of a petition for certiorari seeking review, of his First Amendment challenge to § 750.543m, facially and as applied to his political speech. The County Prosecutor is seeking to reinstate a criminal prosecution of Applicant under this 20-year felony statute, which prohibits the “serious expression of intent to commit an act of terrorism.” The Sixth Circuit denied Applicant’s motion for an injunction pending appeal on October 1, 2025.

This request arises from the Sixth Circuit’s decision to disregard the fact that whether speech is protected by the First Amendment is a question of law for the court and not an issue to be left to the biases and uncertainty of a jury, particularly when there is no genuine dispute of material fact as to the content and context of the speech. Moreover, the Sixth Circuit (and the district court) misapprehend this Court’s ruling in *Brandenburg v. Ohio*, 395 U.S. 444 (1969), and its application to this case. Michigan Compiled Laws § 750.543m is not simply a threat statute. It is a “terrorist” threat statute which closely resembles the syndicalism law struck down in *Brandenburg*. Yet, § 750.543m does not have the constitutionally mandated prohibition on punishing the advocacy of the use of force or of law violation unless it is “directed to inciting or producing imminent lawless action and is likely to incite or produce such action.” 395 U.S. at 447.

Absent immediate judicial intervention, Applicant will suffer irreparable harm as he will have to endure, yet again, a felony prosecution and the deprivation of his liberties that are associated with such prosecutions, such as restrictions on his right to travel, restrictions on his right to bear arms, as well as the social opprobrium that accompanies a felony prosecution, the agony and stress the prosecution places upon his wife and young children, and its negative impact on his ability to provide for his family.

Applicant is also likely to obtain certiorari review in this Court and succeed on the merits of his First Amendment claim as the lower courts' decisions are contrary to *Brandenburg, Watts v. United States*, 394 U.S. 705 (1969), and *NAACP v. Claiborne Hardware Co.*, 458 U.S. 886 (1982), and they run afoul of our "profound national commitment to the principle that debate on public issues should be uninhibited, robust, and wide-open, and that it may well include vehement, caustic, and sometimes unpleasantly sharp attacks on government and public officials." *N.Y. Times Co. v. Sullivan*, 376 U.S. 254, 270 (1964). At least four Justices are likely to grant certiorari on the important First Amendment question presented in this application.

Finally, the public interest and equities strongly favor an injunction. This Court has long stated that "[t]he loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury." *Elrod v. Burns*, 427 U.S. 347, 373 (1976). And "it is always in the public interest to prevent

the violation of a party's constitutional rights.” *G & V Lounge, Inc. v. Mich. Liquor Control Comm’n*, 23 F.3d 1071, 1079 (6th Cir. 1994).

Alternatively, the Court should treat this application as a petition for a writ of certiorari before judgment, grant certiorari, and issue an injunction pending review.

OPINIONS BELOW

The Sixth Circuit's order denying the motion for an injunction pending appeal is not reported, but is reproduced at App.001-004. The district court's order denying Applicant's motion for a preliminary injunction is available at *Hess v. Oakland Cnty.*, No. 2:25-cv-10665, 2025 U.S. Dist. LEXIS 169422 (E.D. Mich. Aug. 29, 2025), and it is reproduced at App.005-027.

JURISDICTION

The district court denied Applicant's motion for a preliminary injunction on August 29, 2025. App.005-027. Consistent with Rule 23.3, Applicant sought an injunction pending appeal from the Sixth Circuit. The Sixth Circuit denied the motion for an injunction pending appeal on October 1, 2025. App.001-004. This Court has jurisdiction under 28 U.S.C. §§ 1254(1) & 1651, and it may grant the requested relief under 28 U.S.C. § 1651(a).

STATUTORY PROVISIONS INVOLVED

The relevant statutory provisions (Mich. Comp. Laws §§ 750.543b, 750.543m, & 750.543z) are reproduced at App.028-030.

STATEMENT OF THE CASE

A. PROCEDURAL HISTORY.

On March 6, 2025, the criminal charge against Applicant for allegedly violating § 750.543m was dismissed without prejudice. On March 10, 2025, Applicant commenced this civil action. (R-1, Compl.). On April 1, 2025, Applicant filed a motion for a preliminary injunction (R-12), which the district court denied on August 29, 2025 (App.004-027). That same day, Applicant filed his notice of appeal. (R-37). On September 2, 2025, Applicant filed a motion for an injunction pending appeal in the district court (R-39), which was denied on September 3, 2025 (R-40). On September 4, 2025, Applicant filed a motion for injunction pending appeal in the Sixth Circuit. (Doc. 9-1). The Sixth Circuit denied the motion on October 1, 2025. (App.001-004).

B. STATEMENT OF FACTS.

On December 15, 2023, an election recount was held in Oakland County at the Election Division Training Room (“Recount Room”) inside the County Courthouse. Joseph Rozell, the Director of Elections, was overseeing the recount. Deputies from the County Sheriff’s Office were present to provide security. Several members of the public attended as observers. At times, the recount became heated as some of the observers complained that cheating was taking place, and challenges were filed. Applicant was one of the challengers. (R.12-2, Muise Decl. ¶ 2, Ex. A [Hr’g Tr. (Vol I) at 6-14, 23, 28, 29, 46-48, 53-60]). Applicant is an outspoken critic of the way elections are conducted in Michigan, particularly in Oakland County. (*See id.* at 15-18).

At one point, Applicant departed the Recount Room and went out into the near-empty lobby. While in the lobby, a receptionist for the county, Kaitlyn Howard, claims to have overheard Applicant state, “*Hang Joe for treason.*” The statement was made in conversational tone, and Ms. Howard was admittedly not an intended party to this conversation. No other witness came forward regarding the making of this alleged “terrorist threat.” Neither Rozell nor any other election official was in the lobby at the time. Rozell never heard this statement from Applicant. Ms. Howard eventually reported the alleged “threat” to the County deputies, who then proceeded to question Applicant. Following this questioning, Applicant was permitted to reenter the Recount Room where Rozell and the other election officials were located. Applicant was not arrested, searched, detained, nor was he told to leave the recount. During the public comment period, Applicant proceeded to make a speech about cheating on elections while deputies stood by listening with their arms folded. (*See id. supra & infra; id.* at 28, 34, 51, 54, 58; Exs. B [Photo], C [Photo]).¹

During the preliminary examination, the prosecution presented two witnesses: Joe Rozell and Kaitlyn Howard. The 50th District Court judge denied Applicant’s request to call as witnesses the deputy sheriffs present at the recount.² (R.12-2, Muise Decl. ¶ 4). The deputy witnesses would have provided further evidence that

¹ At the recount, Applicant provided a written statement to the County deputy in which he affirmed that he was expressing his opinion that people who cheat on elections are committing a crime (treason) and that he “never threatened the life of Joe.” (R.12-2, Muise Decl., Ex. F).

² The Michigan circuit court remanded the case to the state district court for the deputies’ testimony to be taken, but the case was dismissed prior to this happening. (R.12-2, Muise Decl. ¶ 4).

there was no serious threat to anyone. (*Id.* ¶¶ 3, 4). Nonetheless, this point is demonstrated by the photographs of the deputies standing with their arms folded and listening to Applicant’s speech, which he made *after* he was questioned by the senior County deputy about the alleged “threat.” (*See id.*).

Joe Rozell testified as follows:

Q. Sir, Mr. Hess never told you directly that he was going to hang you, correct?

A. Correct.

Q. So those words were never personally communicated to you by Mr. Hess at any time?

A. Correct.

Q. Mr. Hess never communicated to you the words, quote, “Hang Joe for treason,” correct?

A. Correct.

Q. These words, “Hang Joe for treason,” are what Ms. Howard claims she overheard Mr. Hess stating in the lobby. Are you aware of that?

A. Yes.

Q. And you were not in the lobby to hear the words, quote, “Hang Joe for treason” that were allegedly uttered by Mr. Hess; is that correct?

A. I was not in the lobby.

Q. And at no time in the election recount room with you and the other election officials did Mr. Hess state, quote, “Hang Joe for treason;” is that correct?

A. Not that I recall, correct.

Q. Okay. At no time in the election recount room with you and the other election officials did Mr. Hess state, quote, “I’m going to hang Joe Rozell,” end quote, correct?

A. Correct.

Q. At no time while in the election recount room with you and the other election officials did Mr. Hess state that he was going to hang anyone?

A. Not that I heard.

(R.12-2, Hr’g Tr (Vol I) at 38-39, Ex A).³ Ms. Howard testified as follows:

³ The district court’s opinion denying Applicant’s motion for a preliminary injunction asserts that Rozell *was told by a deputy (i.e., not Applicant)* “that [Applicant] ‘said that he was going to hang [him],” and that this “threat” is what caused Rozell fear. (App.010) (emphasis added). But, of course, that is not what Applicant said as a

Q. And you made a statement, I believe it's approximately five lines long about what you had heard and saw, correct?

A. Correct.

Q. And you indicate that a person made a statement, "Hang Joe for treason."

A. Correct.

(*Id.* at 67).

* * * *

Q. After hearing the statement and the response, what did you do?

A. Immediately, not much. I mean I couldn't leave my position at the front desk. I was the only one guarding it, so I had to wait a little bit until I was able to go out into the lobby and find a deputy or someone I could report what I had heard to without disrupting the recount.

(*Id.* at 73-74).

* * *

Q. You actually waited a period of time before you even made the report to the law enforcement, correct?

A. Correct.

Q. So you didn't perceive any imminent harm at that point, correct?

A. Correct.

(*Id.* at 77).⁴

* * *

Q. When Mr. Hess made the statement, quote, "Hang Joe for treason," per your testimony, he wasn't having a conversation with you, correct?

A. Correct.

Q. You simply overheard that statement, correct?

A. Correct.

(*Id.* at 78).

* * * *

matter of undisputed fact. Rozell's fear was an important factor for the district court's opinion denying the preliminary injunction (and the Sixth Circuit's order denying Applicant's motion for an injunction pending appeal, *see* App.003 [stating that "[t]he existence of a threat depends primarily on the understanding of the hearer: 'what the statement conveys' to the person on the other end."]). Yet, Rozell's fear is based upon a demonstrably false claim. The record shows that Applicant never uttered the words the deputy told Rozell.

⁴ Consequently, the only witness to the alleged "threat" didn't consider it to be a "serious expression of an intent" to commit harm. Otherwise, she would have acted as such and immediately sought law enforcement assistance.

Q. And, to be clear, Mr. Rozell was not in the lobby at all during the time when you heard this of this hang Joe for treason threat that you testified to, correct?

A. Correct. He was not in the lobby at that time.

Q. No member of the Board of Canvassers was there, as far as you recall?

A. As far as I recall, no.

(*Id.* at 82).

* * * *

MR. HALL:⁵ I'd stipulate that it was a normal conversational tone.
(*Id.* at 71).

When questioned as to why she made the report to the deputies, Ms. Howard testified as follows:

Q. And why did you feel the need to tell him?

A. Because personally from what I've experienced and what I've done, I – I don't take kindly to that kind of behavior or language.

(*Id.* at 75).

On April 4, 2024, nearly *four months* after the alleged threat, a warrant issued for Applicant's arrest. (R.12-2, Ex. E). Applicant was held on a \$20,000 personal recognizance bond (R.12-2, Ex. F), which included, *inter alia*, conditions that restricted his travel and that deprived him of his fundamental right to bear arms. *See* U.S. Const. amend. II; Mich. Const. 1963, art. 1, § 6. Applicant was ordered to surrender his CPL, which he did. (*See* R.12-2, Ex. G). Following his initial appearance, Applicant was ordered to go to the Oakland County Jail for fingerprinting, where he spent two hours in a jail cell while his family nervously waited in the parking lot for his release. (R.12-2, Muise Decl. ¶ 6).

⁵ Mr. Hall was the Special Prosecutor assigned by County Prosecutor McDonald.

On February 13, 2025, the Michigan Court of Appeals held in *People v. Kvasnicka*, No. 371542, 2025 Mich. App. LEXIS 1202 (Ct. App. Feb. 13, 2025), a case brought by the Wayne County Prosecutor, that § 750.543m was facially unconstitutional based on *Counterman v. Colorado*, 600 U.S. 66 (2023). As a result of this decision, Applicant’s counsel promptly filed a motion to dismiss the criminal case against Applicant. (R.12-2, Muise Decl. ¶ 1). On March 6, 2025, the district court dismissed the case without prejudice. (*Id.*).

The Wayne County Prosecutor filed an application for leave to appeal to the Michigan Supreme Court. On March 28, 2025, the Michigan Supreme Court issued its ruling (R.12-2, Ex. H), in which it “express[ed] no opinion on whether MCL 750.543m violates constitutional free-speech protection by imposing criminal liability without proof ‘that the defendant consciously disregarded a substantial risk that his communications would be viewed as threatening violence,’” as required by *Counterman*. Rather, the Court remanded for the court of appeals to address, *inter alia*, the “proper interpretation of MCL 750.543m” in light of § 750.543z, which expressly prohibits a prosecutor from prosecuting someone for conduct that is “presumptively” protected by the First Amendment. The Court further instructed that in light of § 750.543z, the court of appeals should consider whether there is some “limiting construction” that could save the facial constitutionality of § 750.543m. (R.12-2, Ex. H).

On remand, the Michigan Court of Appeals in *People v. Kvasnicka* (“*Kvasnicka II*”), No. 371542, 2025 Mich. App. LEXIS 5764 (Ct. App. July 21, 2025), “hesita[ntly]

and relucta[ntly] . . . read into MCL 750.543m(1)(a) a *mens rea* requirement that the Legislature did not deem necessary to expressly state when enacting MCL 750.543m(1)(a).” *Kvasnicka II*, 2025 Mich. App. LEXIS 5764, at *16, n.2. As a result, the court upheld the *facial* validity of § 750.543m in light of *Counterman* by requiring the prosecutor to also prove that the defendant “consciously disregarded a substantial risk that his [or her] communications would be viewed as threatening violence.” *Kvasnicka II*, 2025 Mich. App. LEXIS 5764, at *16. Notably, the Michigan Court of Appeals did not address the constitutional deficiencies of § 750.543m in light of *Brandenburg v. Ohio*, 395 U.S. 444 (1969), nor did the court opine on the application of § 750.543m to the facts in this case and the impact of *Brandenburg*, *Watts v. United States*, 394 U.S. 705 (1969), and *NAACP v. Claiborne Hardware Co*, 458 U.S. 886 (1982). These cases are discussed below.

Because the Michigan Court of Appeals reinstated the constitutionality of § 750.543m, the Oakland County Prosecutor has informed counsel that the criminal charge against Applicant will be reinstated.

MICHIGAN COMPILED LAWS § 750.543m

Section 750.543m, a 20-year felony, proscribes only those statements that communicate “a serious expression of intent to commit *an act of terrorism*.” *People v. Osantowski*, 274 Mich. App. 593, 606 (2007) (emphasis added). This limiting construction was necessary to comport with *Virginia v. Black*, 538 U.S. 343 (2003). And in light of *Counterman* (and *Kvasnicka II*), the prosecutor must also prove “that

the defendant consciously disregarded a substantial risk that his communications would be viewed as threatening violence.”

Section 750.543m criminalizes the “making of a *terrorist* threat” by threatening to “commit an act of terrorism” and communicating, *with the requisite intent*, that “threat to any other person.” An “act of terrorism” is defined as a “willful and deliberate act” that would comprise a “violent felony,” known to be “dangerous to human life,” and which is specifically “*intended to intimidate or coerce a civilian population or influence or affect, the conduct of government or a unit of government through intimidation or coercion.*” *Id.* (emphasis added). Mich. Comp. Laws § 750.543b(a); *Osantowski*, 274 Mich. App. 593. To prevent criminal prosecutions such as the one against Applicant, M. Crim. JI 38.4(3) was adopted in August 2020, and it specifically provides that “the prosecution *must prove* that the threat”

must have been a true threat, and not have been something like idle talk, or a statement made in jest, or a *political comment*. It must have been made under circumstances where *a reasonable person would think that others may take the threat seriously as expressing an intent to inflict harm or damage.*

People v. Byczek, 337 Mich. App. 173, 190 n.7 (2021) (emphasis added).

While the Michigan courts have upheld § 750.543m under *Virginia v. Black* and *Counterman*, as discussed further below, the statute remains invalid under *Brandenburg*. Moreover, in light of clearly established First Amendment jurisprudence, Applicant’s speech cannot be criminalized as it is protected political speech *as a matter of law*. The requested injunction should issue.

REASONS FOR GRANTING THE APPLICATION

The All Writs Act, 28 U.S.C. § 1651(a), authorizes a Circuit Justice or the Court to issue an injunction pending appeal. In the context of constitutional claims, an injunction is appropriate when an applicant faces irreparable harm, when he is likely to obtain certiorari review and succeed on the merits of his claims, and when the public interest would not be harmed. *See Tandon v. Newsom*, 593 U.S. 61, 63-64 (2021) (per curiam) (citing *Roman Cath. Diocese of Brooklyn v. Cuomo*, 592 U.S. 14 (2020)); *Lucas v. Townsend*, 486 U.S. 1301, 1305 (1988) (Kennedy, J., in chambers) (citing same factors and considering whether there is a likelihood of granting certiorari and “fair prospect” of reversal). The Court also has discretion to issue an injunction “based on all the circumstances of the case,” without the injunction “be[ing] construed as an expression of the Court’s views on the merits” of the case. *Little Sisters of the Poor Home for the Aged v. Sebelius*, 571 U.S. 1171 (2014).

Applying these factors, Applicant is entitled to an injunction because he faces imminent, irreparable harm (being prosecuted for committing a 20-year felony for engaging in political speech); he is likely to obtain certiorari review and succeed on the merits; and an injunction will preserve the status quo, thereby allowing this Court time to decide the merits without Applicant suffering the grave and irreparable harm that a felony prosecution under Michigan’s “terrorist threat” statute will inflict on him and his family.

I. ABSENT AN IMMEDIATE INJUNCTION, APPLICANT FACES IRREPARABLE HARM.

Absent an immediate injunction, Applicant will have to endure, yet again, an unlawful prosecution for engaging in political speech. In short, Applicant will be irreparably harmed without the injunction. “The loss of First Amendment freedoms, for even minimal periods of time, unquestionably constitutes irreparable injury.” *Elrod*, 427 U.S. at 373; *Connection Distrib. Co. v. Reno*, 154 F.3d 281, 288 (6th Cir. 1998). And this injury is sufficient to justify the requested injunction. *Newsome v. Norris*, 888 F.2d 371, 378 (6th Cir. 1989) (“The Supreme Court has unequivocally admonished that even minimal infringement upon First Amendment values constitutes irreparable injury sufficient to justify injunctive relief.”) (citing *Elrod*).

Here, the threat of prosecution under § 750.543m hangs over Applicant’s head (and the collective head of his family) like a sword of Damocles, causing ongoing and irreparable harm. *See MedImmune, Inc. v. Genentech, Inc.*, 549 U.S. 118, 128-29 (2007) (“[W]here threatened action by government is concerned, we do not require a plaintiff to expose himself to liability before bringing suit to challenge the basis for the threat.”).

II. APPLICANT IS LIKELY CORRECT ON THE MERITS OF HIS CLAIMS.

A. THE APPLICATION OF § 750.543M VIOLATES THE FIRST AMENDMENT.

Controlling law demonstrates that Applicant’s speech is protected by the First Amendment *as a matter of law*. Applicant has a fundamental right not to be *prosecuted* for political speech, even if it is caustic or unpleasant. This right is protected by the First Amendment *and* state law. *See, e.g.*, Mich. Comp. Laws, §

750.543z (“[A] prosecuting agency shall not prosecute any person or seize any property for conduct presumptively protected by the first amendment”). Pursuant to § 750.543z, if the speech is presumptively protected by the First Amendment, then no (“shall not”) prosecution is permitted under § 750.543m. The statute, for good reason, *strongly* favors the *protection* of speech and *presumes* the speech is protected and thus beyond the reach of a “prosecuting agency.” The reason for this is obvious: prosecuting someone for conduct (in this case, pure speech) “presumptively protected by the First Amendment” unquestionably chills the right to freedom of speech. *See Dombrowski v. Pfister*, 380 U.S. 479, 486 (1965) (“The threat of sanctions may deter . . . almost as potently as the actual application of sanctions.”). Process (*e.g.*, having a warrant issued for your arrest, having to retain an attorney, being subject to bond conditions that restrict fundamental liberties, and having to appear in court and stand trial) is punishment. And the right to freedom of speech is an essential right in our constitutional republic. *NAACP v. Claiborne Hardware Co.*, 458 U.S. at 913 (“[S]peech concerning public affairs is more than self-expression; it is the essence of self-government.”) (citations omitted). In sum, the first prosecution and the renewed prosecution not only violate Applicant’s fundamental right to freedom of speech, they are a grave threat to the broader public interest in protecting this fundamental liberty for all citizens.

The Legislature passed § 750.543z limiting the power of a “prosecuting agency” and carefully chose the word “*presumptively*” for good reason. First Amendment “freedoms are delicate and vulnerable, as well as supremely precious in our society,”

and “[b]ecause [these] freedoms need breathing space to survive, government may regulate in the area only with narrow specificity.” *NAACP v. Button*, 371 U.S. 415, 433 (1963); *Grayned v. City of Rockford*, 408 U.S. 104, 109 (1972) (“[Where a law] abuts upon sensitive areas of basic First Amendment freedoms, it operates to inhibit the exercise of those freedoms. Uncertain meanings inevitably lead citizens to steer far wider of the unlawful zone than if the boundaries of the forbidden areas were clearly marked.”) (cleaned up). Bear in mind, this is a pure speech case. There is no violent or otherwise criminal conduct involved—the government is simply seeking to criminalize words allegedly spoken by Applicant in a near-empty lobby of an election hall away from the director of elections and other election officials during the course of a contentious recount.⁶

“True threats” are very narrowly defined to “encompass those statements where the speaker means to communicate a serious expression of an intent to commit an act of unlawful violence to a particular individual or group of individuals.” *Va. v. Black*, 538 U.S. at 359. Political hyperbole—even if it involves threatening an act of violence—is protected speech as a matter of law. In *Watts v. United States*, 394 U.S. 705 (1969), the Court instructed that only a contextually *credible* threat to kill, injure, or kidnap the President constitutes a “true threat.” By contrast, communications which convey political hyperbole (even if they mention the use of weapons or advocate

⁶ It is not possible as a matter of undisputed facts that this off-hand remark in the lobby outside of the presence of election officials was specifically “intended to intimidate or . . . influence or affect the conduct of government or a unit of government through intimidation or coercion.” Mich. Comp. Laws § 750.543b(a).

for other acts of violence) are protected by the First Amendment. *Id.* at 707-08. Thus, the Court instructed that Watt’s alleged “threat” in its factual context (*i.e.*, Watts was engaging in a political protest, not unlike the fact that Applicant was protesting the conduct of a recount) was not a “true threat,” but instead was mere “political hyperbole” immunized by the First Amendment. *Id.* at 706-08. Per the Court:

[T]he statute initially requires the Government to prove a true ‘threat.’ We do not believe that the kind of political hyperbole indulged in by petitioner fits within that statutory term. For we must interpret the language . . . against the background of a profound national commitment to the principle that debate on public issues should be uninhibited, robust, and wide-open, and that it may well include vehement, caustic, and sometimes unpleasantly sharp attacks on government and public officials.

Id. at 708 (citations and internal quotations omitted). Applying these principles, the Court reversed, as a matter of law,⁷ the conviction for a threat based on the statement “if they ever make me carry a rifle the first man I want to get in my sights is L.B.J.,” *id.* at 706, because the “offense here was a kind of very crude offensive method of stating a political opposition to the President,” *id.* at 708 (internal quotations omitted). Similarly here, stating the opinion that a director of elections should “hang for treason” is a crude method of stating political opposition to the way in which the contentious election recount was being conducted and supervised. The alleged “threat” made by Applicant cannot be punished as a “true threat” under binding First Amendment jurisprudence as it was, at best, political hyperbole.

⁷ Whether Applicant’s speech is protected by the First Amendment is not an issue for the jury to decide. It is a question of law for the court. This principle of law is made clear by *Watts*, *Brandenburg*, and others. Moreover, there are no material fact disputes in this case.

As *Watts* instructs, this Court must “consider this case against the background of a profound national commitment to the principle that debate on public issues should be uninhibited, robust, and wide-open, and that it may well include vehement, caustic, and sometimes unpleasantly sharp attacks on government and public officials.” *N.Y. Times Co.*, 376 U.S. at 270; *see also Watts*, 394 U.S. at 708 (observing that “[t]he language of the political arena . . . is often vituperative, abusive, and inexact”) (citations omitted).

And whether or not the speech at issue is protected by the First Amendment does not depend *at all* upon the sensitivities of the listener. Allowing a listener who may be offended (or even frightened) by the speech to be the catalyst for punishing the speaker is known as a “heckler’s veto,” which is impermissible. Under the First Amendment, a listener’s reaction to speech is not a permissible basis for regulation, restriction, or punishment. *See Forsyth Cnty. v. Nationalist Movement*, 505 U.S. 123, 134 (1992). “The First Amendment knows no heckler’s veto.” *Lewis v. Wilson*, 253 F.3d 1077, 1082 (8th Cir. 2001). It is clearly established that “[t]he heckler’s veto is [a] type of odious viewpoint discrimination” prohibited by the First Amendment. *Bible Believers v. Wayne Cnty.*, 805 F.3d 228, 248 (6th Cir. 2015) (*en banc*). Thus, the emotive impact of speech is not a permissible basis for punishing the speaker. *See Boos v. Barry*, 485 U.S. 312, 321 (1988) (O’Connor, J.) (observing that “[t]he emotive impact of speech on its audience is not a ‘secondary effect’” that would permit restricting the speech). Consequently, the fact that Ms. Howard may have been offended or even frightened by the words she claims were stated by Applicant in the

lobby of the Recount Room does not affect the First Amendment calculus. The same is true for Rozell’s subjective feelings, fears, or reactions to hearing *from a third-party* what Applicant allegedly said in the lobby. It is quite evident that nothing Applicant said or did on December 15, 2023, was an actual, imminent, or serious “threat” to anyone. Applicant was not arrested (nor should he have been) on December 15, 2023. After being interviewed by a deputy following the alleged “terrorist threat,” Applicant was permitted (rightfully so) to return into the Recount Room. And upon returning, Applicant was permitted (rightfully so) to give a speech during a public comment period expressing his opinions and concerns about cheating on elections. Applicant was not arrested for this speech (nor should he have been). Indeed, the incident occurred in December of 2023, yet the County Prosecutor waited until April 2024, nearly *four months* later, to charge Applicant. This was an abuse of the legal process to punish speech protected by the First Amendment.

This Court’s precedent following *Watts* has both solidified the principle and provided more guidance about the kind of statements that are protected speech—speech which cannot provide the grounds for criminal or civil liability. In *Brandenburg v. Ohio*, 395 U.S. 444 (1969), decided the same year as *Watts*, the Court reversed a criminal conviction based on a film of a gathering in which armed speakers made derogatory and threatening statements. Despite the threatening and loathsome rhetoric, the Court *reversed the conviction* because the statute punished “mere advocacy not distinguished from incitement to imminent lawless action.” *Id.* at 448-49. Thus, in *Brandenburg*, the Court held that “the constitutional guarantees

of free speech and free press do not permit a State to forbid or proscribe *advocacy of the use of force or of law violation* except where such advocacy is directed to inciting or producing imminent lawless action and is likely to incite or produce such action.”

Id. at 447 (emphasis added). As summarized by the Court:

[W]e are here confronted with a statute which, by its own words and as applied, purports to punish mere advocacy and to forbid, on pain of criminal punishment, assembly with others merely to advocate the described type of action. Such a statute falls within the condemnation of the First and Fourteenth Amendments.

Id. at 449. Consequently, even if the Court were to conclude that the alleged “terrorist threat” in this case was not political hyperbole or rhetoric but a serious expression advocating for the “use of force or of law violation,” the statement in the lobby was plainly not directed to inciting or producing imminent lawless action nor likely to incite or produce such action (where were the ropes or gallows?). As noted, Applicant was permitted to return to the Recount Room and make a speech during the public comment period, and all of this occurred without incident. This is not a close call. Applicant’s speech is protected by the First Amendment.

In *NAACP v. Claiborne Hardware Company*, 458 U.S. 886 (1982), the Court applied these same principles to threatening rhetoric employed to ensure compliance with a boycott against racial discrimination and held those statements were protected by the First Amendment. In other words, the violent statements could not serve as grounds for civil liability (let alone criminal liability). In that case, Charles Evers told members of the community that “blacks who traded with white merchants would

be answerable to him” *id.* at 900 n.28, and they would “have their necks broken,” *id.*⁸ The Court held that Evers’ comments “did not transcend the bounds of protected speech.” *Id.* at 928. Per the Court,

[s]trong and effective extemporaneous rhetoric cannot be nicely channeled in purely dulcet phrases. An advocate must be free to stimulate [] his audience When such appeals do not incite lawless action, they must be regarded as protected speech. To rule otherwise would ignore the profound commitment that debate on public issues should be uninhibited, robust, and wide-open.

Id. (internal quotations and citations omitted). Here, there are no statements that incited any lawless action. Thus, in light of clearly established First Amendment jurisprudence (and § 750.543z), it is unlawful to punish Applicant’s speech under § 750.543m.

B. BRANDENBURG APPLIES TO § 750.543M AS THE STATUTE PROHIBITS ADVOCATING VIOLENCE TO INFLUENCE OR AFFECT THE CONDUCT OF GOVERNMENT.

The lower courts misapprehend the holding of *Brandenburg v. Ohio*, 395 U.S. 444 (1969), and its application in this case. Section 750.543m only applies to “serious expression[s] of intent to commit *an act of terrorism*.” An “act of terrorism” under this statute “means a willful and deliberate act . . . that is intended to . . . influence or affect the conduct of government or a unit of government through intimidation or coercion.” Mich. Comp. Laws § 750.543b. The Ohio syndicalism statute that was struck down in *Brandenburg*, which was similar to California’s Criminal Syndicalism Act addressed in *Whitney v. California*, 274 U.S. 357 (1927), prohibited “advocating’

⁸ Obviously, when someone is “hung,” he has his “neck broken.”

violent means *to effect political and economic change*,” which is similar to the proscriptions of § 750.543m. The “constitutional principle” that comes out of *Brandenburg* is that “the constitutional guarantees of free speech and free press do not permit a State to forbid or proscribe *advocacy of the use of force or of law violation* except where such advocacy is directed to inciting or producing imminent lawless action and is likely to incite or produce such action.” *Brandenburg*, 395 U.S. at 447-48 (emphasis added). In other words, advocating for the hanging of a government official for treason cannot be punished under the First Amendment as a matter of law unless this “advocacy is directed to inciting or producing imminent lawless action and is likely to incite or produce such action.” As stated by this Court in *Brandenburg*, “A statute which fails to draw this distinction impermissibly intrudes upon the freedoms guaranteed by the First and Fourteenth Amendments. It sweeps within its condemnation speech which our Constitution has immunized from governmental control.” *Id.* at 447-48. The lower court’s dismissive treatment of *Brandenburg* as applying to only “incitement” statutes and not “true threats” misapprehends *Brandenburg* and the First Amendment. In fact, this Court applied *Brandenburg* to hold that the threats of violence in *Claiborne Hardware* were protected speech. In short, § 750.543m is not simply a “threat” statute—this statute is similar to the syndicalism statute at issue in *Brandenburg*. Without evidence showing that Applicant’s comment was directed to inciting or producing imminent lawless action and likely to produce such action, his speech is “immunized from governmental control” by the First Amendment. Without question, the speech at issue in

Brandenburg (by armed individuals) and in *Claiborne Hardware* (threatening to break necks) was intended to intimidate and coerce; yet, it was fully protected by the First Amendment.

“A clear and precise enactment may nevertheless be ‘overbroad’ if in its reach it prohibits constitutionally protected conduct. . . .” *Grayned*, 408 U.S. at 114-15; *Lewis v. New Orleans*, 415 U.S. 130, 134 (1974) (stating that because the challenged ordinance “is susceptible of application to protected speech, the section is constitutionally overbroad and therefore is facially invalid”). Thus, a statute is overbroad if it prohibits constitutionally protected activity, in addition to activity that may be prohibited without offending constitutional rights. *Grayned*, 408 U.S. at 114. Michigan’s “terrorist threat” statute is overbroad. As noted, it is more like the statute at issue in *Brandenburg* (“advocating” violent means to influence government) and the speech at issue in *Claiborne Hardware* than the cross-burning statute at issue in *Black*. As explained in *Brandenburg*:

In 1927, this Court sustained the constitutionality of California’s Criminal Syndicalism Act . . . , the text of which is quite similar to that of the laws of Ohio. *Whitney v. California*, 274 U.S. 357 (1927). The Court upheld the statute on the ground that, without more, “advocating” violent means to effect political and economic change involves such danger to the security of the State that the State may outlaw it. . . . But *Whitney* has been thoroughly discredited by later decisions. . . . These later decisions have fashioned the principle that the constitutional guarantees of free speech and free press do not permit a State to forbid or proscribe advocacy of the use of force or of law violation except where such advocacy is directed to inciting or producing imminent lawless action and is likely to incite or produce such action. As we said in *Noto v. United States*, 367 U.S. 290, 297-298 (1961), “the mere abstract teaching . . . of the moral propriety or even moral necessity for a resort to force and violence, is not the same as preparing a group for violent action and steeling it to such action.” . . . A statute which fails to draw

this distinction impermissibly intrudes upon the freedoms guaranteed by the First and Fourteenth Amendments. It sweeps within its condemnation speech which our Constitution has immunized from governmental control.

Brandenburg, 395 U.S. at 447-48. The same is true here. As noted, a required element of the “terrorist threat” statute is advocating for the use of violence to “influence or affect the conduct of government or a unit of government through intimidation or coercion.” Mich. Comp. Laws § 750.543b(a)(iii). This is not simply a “threat” statute—this is *Brandenburg*. Yet, the statute fails to include the constitutional requirement that advocating for (“threatening”) the use of violent means to effect political change must be “directed to inciting or producing imminent lawless action and [] likely to produce such action.” Without evidence proving that Applicant’s statement was directed to inciting or producing imminent lawless action and likely to produce such action, his speech is “immunized from governmental control” by the First Amendment. As noted, the speech at issue in *Brandenburg* (by armed individuals) and in *Claiborne Hardware* was intended to intimidate and coerce; yet, it was fully protected by the First Amendment. Section 750.543m, facially and as applied, violates the First Amendment.

III. THE PUBLIC INTEREST AND EQUITIES FAVOR AN INJUNCTION.

The harm to Applicant is substantial because the deprivation of his right to freedom of speech constitutes irreparable injury. *Elrod*, 427 U.S. at 373; *Connection Distrib. Co.*, 154 F.3d at 288; *Newsome*, 888 F.2d at 378. On the other hand, if Respondents are restrained from unlawfully enforcing § 750.543m *against Applicant while this appeal proceeds*, they will suffer no harm because the exercise of

constitutionally protected rights can never harm any of Respondents' or others' legitimate interests. *See Connection Distributing Co.*, 154 F.3d at 288.

Finally, "it is always in the public interest to prevent the violation of a party's constitutional rights." *G & V Lounge, Inc. v. Mich. Liquor Control Comm'n*, 23 F.3d 1071, 1079 (6th Cir. 1994); *Dayton Area Visually Impaired Persons, Inc. v. Fisher.*, 70 F.3d 1474, 1490 (6th Cir. 1995) (stating that "the public as a whole has a significant interest in ensuring . . . protection of First Amendment liberties"). Because the enforcement of § 750.543m to punish political speech violates the First Amendment, it is in the public interest to issue the injunction.

IV. ALTERNATIVELY, THIS COURT SHOULD TREAT THIS APPLICATION AS A PETITION FOR WRIT OF CERTIORARI BEFORE JUDGMENT, GRANT CERTIORARI, AND ISSUE AN INJUNCTION PENDING REVIEW.

In the alternative, this Court should treat this application as a petition for writ of certiorari before judgment, grant certiorari, and issue an injunction pending review. *See* S. Ct. R. 11 (citing 28 U.S.C. § 2101(e)). All the ordinary factors favor certiorari review. The Sixth Circuit's decision conflicts with this Court's precedents. In addition, this case implicates issues of imperative public importance regarding the application of the First Amendment, and it provides a clean vehicle for addressing these issues as the record is sufficiently developed through witness testimony, and there are no material disputes of fact. Immediate determination in this Court is needed because the County Prosecutor is moving to reinstate the criminal charge against Applicant.

CONCLUSION

This Court should grant this application. Alternatively, the Court should grant certiorari and issue an injunction pending resolution of the merits.

Respectfully submitted,

ROBERT J. MUISE, ESQ.

Counsel of Record

AMERICAN FREEDOM LAW CENTER

P.O. Box 131098

Ann Arbor, Michigan 48113

(734) 635-3756

rmuise@americanfreedomlawcenter.org

Counsel for Applicant